

1 H.942

2 An act relating to miscellaneous agricultural subjects

3 It is hereby enacted by the General Assembly of the State of Vermont:

4 * * * Water Quality Training * * *

5 Sec. 1. 6 V.S.A. § 4981 is amended to read:

6 § 4981. AGRICULTURAL WATER QUALITY TRAINING

7 (a) ~~On or before July 1, 2016, as part of the revisions of the Required~~
8 ~~Agricultural Practices, the~~ The Secretary of Agriculture, Food and Markets
9 ~~shall~~ may adopt by rule requirements for training classes or programs for
10 owners or operators of small farms, medium farms, or large farms certified or
11 permitted under this chapter regarding:

12 (1) the prevention of discharges, as that term is defined in 10 V.S.A.
13 § 1251(3); and

14 (2) the mitigation and management of stormwater runoff, as that term is
15 defined in 10 V.S.A. § 1264, from farms.

16 (b) Any training ~~required~~ under this section ~~shall~~ may address:

17 (1) the existing statutory and regulatory requirements for operation of a
18 large, medium, or small farm in the State;

19 (2) the management practices and technical and financial resources
20 available to assist in compliance with statutory or regulatory agricultural
21 requirements;

1 (3) the land application of manure or nutrients, methods or techniques to
2 minimize the runoff of land-applied manure or nutrients to waters of the State,
3 and identification of weather or soil conditions that increase the risk of runoff
4 of land-applied manure or nutrients to waters of the State; ~~and~~

5 (4) standards required for nutrient management, including nutrient
6 management planning; or

7 (5) best management practices and other techniques for improving farm
8 practices or water quality.

9 (c) The Secretary ~~shall~~ may include the training ~~required by this section~~
10 requirements as a condition of a large farm permit, medium farm permit, or
11 small farm certification required under this chapter, or may require any farm
12 operator or owner to participate in assigned training when the Secretary
13 determines additional water quality education is appropriate. ~~The Secretary~~
14 ~~may phase in training requirements under this section based on farm size,~~
15 ~~permit or certification category, or available staffing. On or before July 1,~~
16 ~~2017, the Secretary shall establish a schedule by which all owners or operators~~
17 ~~of small farms, medium farms, or large farms shall complete the training~~
18 ~~required by this section.~~

19 (d) The Secretary may approve or authorize ~~the training required by this~~
20 ~~section to be conducted by~~ other entities, including the University of Vermont

1 Extension Service and the natural resources conservation districts, to perform
2 any training described in this section.

3 (e) The Secretary shall not charge the owner or operator of a large,
4 medium, or small farm for ~~the any training required by this section the~~
5 Secretary requires. The Secretary shall provide or pay for ~~the any~~ training
6 required under this section from funds available to the Agency of Agriculture,
7 Food and Markets for water quality initiatives.

8 (f) As of July 1, 2026, the mandatory water quality training requirements in
9 the Required Agricultural Practices Rule are repealed, and the Secretary may
10 prospectively determine appropriate training requirements as described by this
11 section.

12 * * * Managing Non-Sewage Waste * * *

13 Sec. 2. 6 V.S.A. § 4817 is amended to read:

14 § 4817. MANAGEMENT OF NON-SEWAGE WASTE

15 (a) As used in this section:

16 (1) “Non-sewage waste” means any waste other than sewage that may
17 contain organisms pathogenic to human beings but does not mean stormwater
18 runoff.

19 (2) “Sewage” means waste containing human fecal coliform and other
20 potential pathogenic organisms from sanitary waste and used water from any

1 building, including carriage water and shower and wash water. “Sewage” does
2 not mean stormwater runoff as that term is defined in 10 V.S.A. § 1264.

3 (3) “Waste materials” means non-sewage solid or liquid digestates from
4 certified solid waste facilities or materials approved by the Secretary of the
5 Agency of Natural Resources for acceptable use under the Solid Waste Rules.

6 ~~(b)(1) The Secretary may require~~ This section shall apply to a person
7 transporting or arranging for the transport of the following:

8 (A) non-sewage waste to a farm for deposit in a manure pit or for use
9 as an input in a methane digester; or

10 (B) waste materials to a farm for storage, land application, deposit in
11 a manure pit, or use in a methane digester.

12 ~~(2) to~~ A person subject to this section shall obtain approval from the
13 Secretary prior to transporting ~~the non-sewage waste~~ or waste materials ~~to the~~
14 any farm. The Secretary may require a person to ~~report to the Secretary at a~~
15 ~~designated time one or more of the following~~ provide the following
16 information to evaluate a request to transport the described materials to a farm:

17 ~~(1)(A)~~ (A) the composition of the material transported proposed for
18 transport to the a farm, including the source of the material; and

19 (B) laboratory test results for every nutrient or contaminant that the
20 Secretary requires the applicant to identify in the material; and

1 ~~(2)(C)~~ the volume of the material ~~transported~~ proposed for transport to a
2 farm.

3 (c) A person the Secretary approves to transport non-sewage waste or
4 waste materials to a farm shall report the following information as frequently
5 as the Secretary requires:

6 (1) the composition of the material transported to a farm, including the
7 source of the material;

8 (2) laboratory test results for every nutrient or contaminant that the
9 Secretary requires the person to identify in the material; and

10 (3) the volume of the material transported to a farm.

11 (d) After receipt of a an application or report required under subsection (b)
12 or (c) of this section, the Secretary may prohibit the import of non-sewage
13 waste or waste materials onto a farm upon a determination that ~~the import of~~
14 importing the material would violate the farm's nutrient management plan ~~for~~
15 ~~the farm~~ or otherwise present a threat to the environment, human health, plants,
16 soils, or water quality.

17 (e) Nothing in this section shall affect the authority of the Secretary of
18 Natural Resources to regulate wastes under 10 V.S.A. chapter 159 (waste
19 management) or 10 V.S.A. chapter 47 (water pollution control).

* * * Retail Pricing Standards * * *

Sec. 3. 6 V.S.A. chapter 37 is amended to read

CHAPTER 37. ~~UNIT~~ RETAIL PRICING

§ 680. PURPOSE

The purpose of this chapter is to promote and facilitate the following objectives:

(1) protect consumers, promote accuracy, and encourage constructive and useful competition in the sale of consumer commodities when an individual is physically present to complete transactions;

(2) encourage the development and use of consumer commodity pricing that facilitates informed consumer choices when purchasing consumer commodities;

(3) prohibit misleading or deceptive consumer commodity pricing practices; and

(4) promote a level playing field for retail businesses by providing clear rules for businesses to follow while ensuring informed consumer choices.

§ 681. DEFINITIONS

As used in this chapter:

(1) “Secretary” means the Secretary of Agriculture, Food and Markets.

(2) “Consumer commodity” means any ~~food, drug, device, or cosmetic~~ and other article, product, or commodity of any other kind or class, except for

1 drugs sold only by prescription or food sold by a restaurant or made-to-order,
2 including:

3 (A) ~~that are customarily produced for sale to retail sales agencies or~~
4 ~~instrumentalities~~ items retail establishments customarily sell to individuals for
5 consumption by individuals, for or use by individuals for purposes of for
6 personal care, or in the performance of to perform services ordinarily that are
7 often rendered in or around the household; and

8 (B) that usually are consumed or expended ~~in the course of such~~
9 during consumption or use.

10 (3) “Unit price” means the total selling price of a consumer commodity
11 ~~means the retail price of a consumer commodity expressed in terms of the~~
12 ~~retail price of such commodity per such~~ by the price per standard unit of
13 weight, measure, or count as the Secretary designates, computed to the nearest
14 ~~whole cent or fraction thereof as the Secretary designates,~~ area, or length as
15 adopted by the National Council on Weights and Measures and published by
16 the National Institute of Standards and Technology in Handbook 130, *Uniform*
17 *Laws and Regulations in the Areas of Legal Metrology and Fuel Quality.*

18 (4) “Convenience store” means a type of retail establishment that sells a
19 limited number of everyday items such as motor fuel, tobacco products, made-
20 to-order food, snacks, and beverages that serve as a quick, accessible retail
21 option for consumers who typically purchase a small number of products, and

1 that does not offer a sufficient quantity of consumer commodities to make unit
2 pricing as useful to consumers. “Convenience store” does not include a
3 grocery store, drug store, dollar store, or any other type of store. The Secretary
4 has the discretion to determine whether a retail establishment is a convenience
5 store.

6 (5) “Electronic shelf label” is an electronic display that retailers can use
7 to present a product’s name, price, unit price, and other information on a small
8 wired or wireless panel, usually on the edge of a store shelf.

9 (6) “Individual” means any person, partnership, company, corporation,
10 association, or society.

11 (7) “Limited time” or “limited-time” means a period of not more than 60
12 days.

13 (8) “Made-to-order” means food prepared at the time of order or sold
14 from retail cases displaying product in bulk or in servings prepared on the
15 premises. Made-to-order foods may be sold by weight, measure, or count,
16 including piece, portion, or serving. Made-to-order food does not include
17 ready-to-eat foods that are prepackaged for an individual to select.

18 (9) “Real-time dynamic pricing” means a pricing strategy that allows
19 prices to change immediately based on evolving market trends and demand.

20 (10) “Retail establishment” means a store that sells consumer
21 commodities to individuals when they are physically present to inspect, select,

1 and purchase product, except when a store is primarily engaged in selling food
2 for consumption on the premises, or is primarily engaged in a specialty trade
3 that the Secretary determines would be unreasonable to regulate as a retail
4 establishment.

5 (11) “Retail space” means an area that a retail establishment operates or
6 controls where individuals may inspect and select consumer commodities for
7 purchase.

8 (12) “Total selling price” means the price assigned to a consumer
9 commodity and at which said consumer commodity is to be, and is, sold to an
10 individual.

11 § 682. CONSUMER INFORMATION REQUIRED

12 (a) Every ~~person who~~ retail establishment that sells, offers for sale, or
13 exposes any consumer commodity for sale at retail ~~any aluminum foil, bread,~~
14 ~~carbonated soft drinks, cereals, cooking oils, dog or cat food, facial tissues,~~
15 ~~fish, fowl, fruits, grains, meats, napkins, plastic food wrapping, vegetables,~~
16 ~~waxed paper, or other consumer commodity designated by the Secretary~~ shall
17 disclose to ~~the consumer the unit price of the consumer commodity as provided~~
18 ~~in this chapter~~ individuals the accurate total selling price of that commodity.

19 (b) Every ~~person who~~ retail establishment that sells, offers for sale, or
20 exposes for sale at retail any consumer commodity shall disclose to ~~the~~

1 ~~consumer individuals~~ the total price of the consumer accurate unit price of that
2 commodity ~~as provided in this chapter.~~

3 § 683. MEANS OF DISCLOSURE

4 ~~Persons subject to the requirements of section 682 of this title shall disclose~~
5 ~~the unit price and total price to consumers in one or more of the following~~
6 ~~appropriate ways:~~

7 ~~(1) if the consumer commodity is so located that it is not conspicuously~~
8 ~~visible to the consumer, or if the consumer commodity is so located that the~~
9 ~~price information if displayed in accordance with subdivision (2) of this~~
10 ~~section would not be conspicuously visible to the consumer, by a sign or list~~
11 ~~bearing the price information, conspicuously placed near the point of~~
12 ~~procurement;~~

13 ~~(2) by attachment of a stamp, tag, or label directly adjacent to the~~
14 ~~consumer commodity, on the shelf on which the commodity is displayed, or by~~
15 ~~stamping or affixing the price information on the commodity itself; or~~

16 ~~(3) in accord with rules adopted by the Secretary.~~

17 (a) Every retail establishment shall disclose the total selling price and unit
18 price in compliance with the standards adopted and amended by the National
19 Council on Weights and Measures and published by the National Institute of
20 Standards and Technology in Handbook 130, *Uniform Laws and Regulations*
21 *in the Areas of Legal Metrology and Fuel Quality.*

1 (b) The words “Unit Price” shall appear adjacent to the displayed unit
2 price.

3 (c) The total selling price and unit price information shall include a
4 description of the commodity, and size, and be physically located on the
5 commodity, or as close as practical to it while clearly identifying the applicable
6 commodity.

7 (d) The total selling price and unit price information shall be presented
8 boldly, clearly, and conspicuously and shall be as large as practical and not
9 smaller than 7/32 inch in height.

10 (e) The total selling price and unit price information shall exclude any
11 deposit as part of the price but shall indicate that a deposit is required when a
12 deposit is required.

13 (f) The total selling price shall be simultaneously displayed to individuals
14 at each check-out location as consumer commodities are processed at the point
15 of sale to allow consumers an opportunity to assess prices and inquire about all
16 prices that may be inaccurate.

17 (g) The use of electronic shelf labels to increase prices or otherwise use
18 real-time dynamic pricing to increase prices when a retail establishment is
19 open to the public is prohibited. Retail establishments may only increase
20 prices on electronic shelf labels during business hours to correct genuine and

1 documented pricing errors and shall inform individuals present in the store of
2 the price correction.

3 § 683a. REQUIRED COMPLIANCE AND ENFORCEMENT

4 Retail establishments are responsible for furnishing accurate price
5 information to individuals and are subject to enforcement for any violations of
6 this chapter, including violation of requirements adopted by this chapter found
7 in Handbook 130, *Uniform Laws and Regulations in the Areas of Legal*
8 *Metrology and Fuel Quality.*

9 * * *

10 § 685. SECRETARY'S POWERS

11 The Secretary ~~shall~~ may:

12 ~~(1) Designate by regulation those consumer commodities in addition to~~
13 ~~the consumer commodities specifically enumerated in subsection 682(a) of this~~
14 ~~title as to which display of the unit price shall be required, upon a~~
15 ~~determination that such display will be in the best interests of consumers.~~

16 ~~(2) Designate by regulation the unit of weight, measure, or count in~~
17 ~~terms of which the unit price of each consumer commodity shall be expressed,~~
18 ~~provided that no designated unit shall be such as to require persons subject to~~
19 ~~the provisions of subsection 682(a) of this title to measure any consumer~~
20 ~~commodity solely for the purpose of complying with subsection 682(a) of this~~
21 ~~title.~~

1 ~~(3) Designate by regulation whether the unit price of each consumer~~
2 ~~commodity subject to the provisions of subsection 682(a) of this title shall be~~
3 ~~expressed to the nearest whole cent or to an appropriate fraction thereof.~~

4 ~~(4) Exempt by regulation classes~~ exempt any class of retail
5 establishments from any or all requirements of this chapter ~~upon a~~
6 ~~determination that, because sales~~ if the Secretary determines that the sale of
7 consumer commodities ~~regulated by this chapter are purely~~ is incidental to the
8 ~~business of such classes~~ class of retail establishments establishments' business,
9 or that compliance with this chapter is ~~impracticable~~ unreasonable and
10 unnecessary ~~for adequate protection of consumers.~~ to adequately protect
11 individuals; and

12 ~~(5) Prescribe by regulation means for the disclosure of price information~~
13 ~~upon determination that they are more effective than those prescribed in~~
14 ~~section 683 of this title.~~

15 ~~(6)(2) Adopt any other~~ adopt rules necessary to effectuate the provisions
16 of this chapter, ~~in accordance with the best interests of consumers.~~

17 ~~(7) Adopt rules addressing the method of price disclosure in the sale of~~
18 home food service plans, including not only the price of the commodities sold
19 but the service costs or membership fees associated with such a purchase.

20 These rules shall take precedence over any uniform regulation adopted by the

1 ~~National Conference on Weights and Measures and published by the National~~
2 ~~Institute of Standards and Technology.~~

3 § 686. ~~EXCEPTIONS~~ EXEMPTIONS

4 (a) The unit price requirements of this chapter shall not apply to ~~sales of~~
5 consumer ~~commodities~~ commodity sales as follows:

6 (1) At a retail store with less than 7,000 square feet of floor space
7 dedicated to the sale of consumer commodities. This ~~exception~~ exemption
8 shall not apply to ~~the sales agencies or instrumentalities~~ retail establishments of
9 a company having two or more sales ~~agencies or instrumentalities~~ locations as
10 parts of that company.

11 (2) ~~For use or consumption on the premises where sold~~ Convenience
12 stores.

13 (3) When different brands or products are commingled in one receptacle
14 for a limited-time one-priced sale.

15 (4) When commodities are individually marked with a clearance or sale
16 tag and are located in a clearance or limited-time sale section of the store.
17 Clearance or limited-time sale sections may be on a shelf or multiple shelves,
18 or in another defined area of the store.

19 (5) When the unit price is identical to the total selling price.

20 (6) When the item falls into one of the following categories:

21 (A) seasonal decorations; or

1 (B) beverages subject to the Federal Alcohol Administration Act
2 packing and labeling requirements.

3 (b) The total selling price requirements of this chapter shall not apply when
4 all items in a retail establishment have the same total selling price.

5 § 687. PENALTY

6 ~~A person who violates this chapter shall be fined not more than \$500.00~~
7 retail establishment that violates this chapter is subject to the penalties and
8 provisions in sections 15, 16, and 17 of this title.

9 * * * Equine Farming; Use Value Appraisal Recommendations * * *

10 Sec. 4. EQUINE FARMING AND USE VALUE APPRAISAL STUDY;
11 REPORT

12 (a) The Commissioner of Taxes shall study and provide recommendations
13 for including equine farming in the Use Value Appraisal Program. The
14 Commissioner shall submit the recommendations to the House Committees on
15 Agriculture, Food Resiliency, and Forestry and on Ways and Means and the
16 Senate Committees on Agriculture and on Finance on or before December 15,
17 2026. The Commissioner's recommendations shall include an analysis of the
18 potential fiscal impact of permitting agricultural land and farm buildings that
19 are used for equine farming to enroll in the Use Value Appraisal Program.

20 (b) As used in this section:

21 (1) "Agricultural land" has the same meaning as in 32 V.S.A. § 3752(1).

1 (2) “Equine farming” means the raising, feeding, or management of four
2 or more equines owned or boarded by a farmer for gain or profit, including
3 training, showing, and providing instruction and lessons in riding, training, and
4 the management of equines.

5 (3) “Farm buildings” has the same meaning as in 32 V.S.A. § 3752(14).

6 (4) “Farmer” has the same meaning as in 32 V.S.A. § 3752(7).

7 * * * Community Development Initiatives * * *

8 Sec. 5. 10 V.S.A. § 325m is amended to read:

9 § 325m. RURAL ECONOMIC DEVELOPMENT INITIATIVE

10 (a) Definitions. As used in this subchapter:

11 (1) “Rural area” means a county of the State designated as “rural” or
12 “mostly rural” by the U.S. Census Bureau in its most recent decennial census.

13 (2) “Small town” means a town in the State with a population of less
14 than 5,000 at the date of the most recent U.S. Census Bureau decennial census.

15 (3) “Community development initiatives” means priority projects
16 located throughout the State that support agriculture, historic preservation,
17 outdoor recreation, and other critical economic development needs, which may
18 be supported when State resources or staffing assistance is not available.

19 (b) Establishment. There is created the Rural Economic Development
20 Initiative to be administered by the Vermont Housing and Conservation Board
21 for the purpose of promoting and facilitating community economic

1 development in the small towns and rural areas of the State, and supporting
2 community development initiatives. The Rural Economic Development
3 Initiative shall collaborate with municipalities, businesses, regional
4 development corporations, regional planning commissions, and other
5 appropriate entities to access funding and other assistance available to small
6 towns and businesses primarily in rural areas of the State when existing State
7 resources or staffing assistance is not available.

8 (c) Services; access to funding. The Rural Economic Development
9 Initiative shall provide the following services to small towns and businesses
10 primarily in rural areas:

11 (1) identification of grant or other funding opportunities that facilitate
12 business development, infrastructure development, or other economic
13 development opportunities; or

14 (2) technical assistance in writing grants, accessing other funding,
15 coordination with providers of grants or other funding, strategic planning for
16 the implementation or timing of activities funded by grants or other funding,
17 and compliance with the requirements of grant awards or awards of other
18 funding.

19 (d) Priority. In providing services under this section, the Rural Economic
20 Development Initiative shall give first priority to projects that have received

1 necessary State or municipal approval and that are ready for construction or
2 implementation.

3 (e) Priority projects. The Rural Economic Development Initiative shall
4 ~~seek to assist~~ include the following priority types of projects:

5 (1) milk plants, milk handlers, or dairy products, as those terms are
6 defined in 6 V.S.A. § 2672;

7 (2) outdoor recreation and equipment enterprises;

8 (3) value-added food and forest products enterprises;

9 (4) farm operations, including phosphorus removal technology for farm
10 operations;

11 (5) coworking or business generator and accelerator spaces;

12 (6) commercial composting facilities; and

13 (7) restoration and rehabilitation of historic buildings in community
14 centers.

15 (f) Coordination. In providing services under this section, the Rural
16 Economic Development Initiative shall coordinate with the Secretary of
17 Commerce and Community Development, regional development corporations,
18 and regional planning commissions.

19 (g) Report. Beginning on January 31, 2019, and annually thereafter, the
20 Rural Economic Development Initiative shall submit to the Senate Committees
21 on Agriculture and on Economic Development, Housing and General Affairs

1 and the House Committees on Agriculture, Food Resiliency, and Forestry and
2 on Commerce and Economic Development a report regarding the activities and
3 progress of the Initiative as part of the report of the Vermont Farm and Forest
4 Viability Program. The report shall summarize the Initiative's activities in the
5 preceding year; evaluate the effectiveness of the services provided by the
6 Initiative; provide an accounting of the grants or other funding that the
7 Initiative facilitated or helped secure; and recommend any changes to the
8 program to further economic development in small towns and rural areas of the
9 State.

10 * * * Farm and Forestry Operations Security Special Fund * * *

11 Sec. 6. 6 V.S.A. § 4643(e) is amended to read:

12 (e) All administratively complete applications shall be evaluated by the
13 Review Board. Within 15 days following receipt of an administratively
14 complete application, the Review Board by majority vote shall recommend to
15 the Secretary whether to issue a payment to the applicant. ~~If the Review Board~~
16 ~~recommends an award under this section, the~~ The Secretary shall ~~issue the~~
17 ~~award~~ make a final award determination within 15 days following the date of
18 the Review Board's recommendation.

19 * * * Effective Date * * *

20 Sec. 7. EFFECTIVE DATE

21 This act shall take effect on July 1, 2026.